

25STCV23203 25STCV23203

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Case Number: 25STCV23203 Hearing Date: August 25, 2026 Dept: 516

JUDGE JAMES I. MONTGOMERY

DEPARTMENT 516

Hearing Date: August 25, 2026

Case Name: Wells Fargo Bank National Association v. Win Global Group, Inc., a corporation doing business as London Liquor, doing business as London Market, et al.

Case No.: 25STCV23203

Matter: Motion for Summary Adjudication

Moving Party: Plaintiff Wells Fargo Bank National Association

Responding Party: None

Matter: Order to Show Cause Re: Default Judgment (Robert S. Shin)

Moving Party: Plaintiff Wells Fargo Bank National Association

Responding Party: None

Tentative Ruling: Plaintiff Wells Fargo Bank National Association's motion for summary adjudication is granted in part and denied in part.

Plaintiff's request for default judgment is denied.

Plaintiff Wells Fargo Bank National Association ("Plaintiff") filed this action against Defendants Win Global Group, Inc., a corporation doing business as London Liquor, doing business as London Market ("Win Global"), Robert S Shin, and Does 1 through 20. The Complaint alleges four causes of action for: (1) breach of contract; (2) account stated; (3) money lent; and (4) breach of guaranty.

Plaintiff moves for summary adjudication against Win Global for the first and second causes of action, and attorney's fees. Winn Global did not file an opposition.

A hearing for Order to Show Cause Re: Default Judgment (Robert S. Shin) is also scheduled.

Legal Standard

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, . . . if the party contends that . . . there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action . . . A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1).)

"The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Ibid.)

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal. App. 4th 463, 467; Code Civ. Proc. § 437c, subd. (c).)

Analysis

A. Motion for Summary Adjudication

Plaintiff contends that it is entitled to summary adjudication as to the first and second causes of action.

Breach of Contract

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.)

Plaintiff presents undisputed evidence before the Court in the form of Requests for Admissions deemed admitted against Win Global, and a declaration by Melissa N. Mickael, Plaintiff's Loan Workout Specialist, to establish each element of its cause of action.

On September 23, 2016, Win Global submitted an Acceptance Certificate to apply for a business line of credit ("Agreement"). (Undisputed Material Facts ("UMF"), 1-1, 1-2) In reliance on Win Global's promise to pay the credit, Plaintiff established a business line of credit for Win Global, Account 2864. (UMF, 1-2, 1-3) Plaintiff thereafter advanced monies, as per the terms of the Agreement. (UMF, 1-4)

Win Global failed to make timely payments and pay the outstanding debt owed on Account 2864, which totals \$53,060.91. (UMF, 1-5, 1-6, 1-8.) As a result of Plaintiff's breach, on January 9, 2025, Plaintiff terminated, charged off, and closed Account 2864. (UMF, 1-7) o date, Win Global still owes \$53,060.91. (UMF, 1-8, 1-9.)

Here, Plaintiff's evidence established the existence of an Agreement between it and Win Global, that Plaintiff fulfilled the obligations of the Agreement, and Win Global breached in the form of failing to pay the outstanding debt. Plaintiff has also provided evidence of the damages it incurred to terminate, charge off, and close Account 2864 in the amount of \$53,060.91.

Plaintiff has met its burden of production that it is entitled to summary adjudication as to its first cause of action because no triable issue of material fact exists regarding the breach of contract claim. The burden shifts to Win Global to establish that a triable issue of material fact exists. Win Global did not oppose the Plaintiff's motion and, therefore, has not shown the existence of a triable issue of material fact.

Thus, Plaintiff's motion for summary adjudication as to the first cause of action is granted.

Account Stated

"An account stated is "an agreement, based on prior transactions between the parties, that the items of an account are true and that the balance struck is due and owing." (Professional Collection Consultants v. Lauron (2017) 8 Cal.App.5th 958, 968 (Professional Collection).) ""[A]n element essential to render the account stated is that it receive the assent of both parties, but the assent of the party sought to be charged may be implied from his conduct."" (Ibid.) ""The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due. [Citations.]"" (Leighton v. Forster (2017) 8 Cal.App.5th 467, 491.)

Similarly, as with the first cause of action, Plaintiff establishes that it opened a line of credit, Account 2864, for Win Global. (UMF, 2-1, 2-2) Each month, Plaintiff would send Win Global a written statement with the amount owed and the transactions made in the account. (UMF, 2-3.) The last payment Plaintiff received from Win Global was on September 3, 2024. (UMF, 2-4.) Plaintiff charged off and closed Account 2864 on January 9, 2025. (UMF, 2-4, 2-5) As of the date, Win Global has not paid the amount due of \$53,060.91. (UMF, 2-7.)

Plaintiff establishes each and every element for its cause of action. Win Global was provided with several statements informing it of the transactions owed and made no objection to the transactions. In Professional Collection, the court established that "[w]hen a statement is rendered to a debtor and no reply is made in a reasonable time, the law implies an agreement that the account is correct as rendered." (Professional Collection, supra, 8 Cal.App.5th at p. 968.)

Plaintiff has met its burden of production that it is entitled to summary adjudication as to its second cause of action because no triable issue of material fact exists. The burden shifts to Win Global to establish that a triable issue of material fact exists. Win Global did not oppose the Plaintiff's motion, and, therefore, has not shown the existence of a triable issue of material fact.

Thus, Plaintiff's motion for summary adjudication as to the second cause of action is granted.

Attorney's Fees

Plaintiff requests that the Court grant an award of attorney's fees in its motion for summary adjudication.

First, Plaintiff does not provide any legal authority to support that this proposition is procedurally proper, nor is the Court aware that this type of determination is appropriate in a motion for summary adjudication. Plaintiff cites to Hoover to support its proposition, but the Court finds the case citation does not provide the Court with authority to make this determination within the present motion. (Hoover Cmty. Hotel Dev. Corp. v. Thomson (1985) 167 Cal.App.3d 1130, 1143.) The second issue is that Plaintiff's notice of motion does not list attorney's fees; Plaintiff's notice is defective. (Code Civ. Proc., §§ 1005, subd. (b), 437c, subd. (a)(1).)

Thus, the Court denies Plaintiff's motion for summary adjudication as to attorney's fees.

Therefore, the Court grants Plaintiff's motions for summary adjudication as to the first and second causes of action.

The Court denies Plaintiff's motion for summary adjudication as to attorney's fees.

B. Order to Show Cause Re: Default Judgment (Robert S. Shin)

Plaintiff seeks for the Court to enter a default judgment against Defendant Robert S. Shin in the amount of \$53,060.91 for the cause of action breach of guaranty for Account 2864. As an initial matter, the request for default judgment is denied because Plaintiff did not file a mandatory CIV-100 form as required under California Rules of Court, rule 3.1800(a).

Additionally, Plaintiff seeks the Court to enter judgment in its favor for the same account and the same amount as under its motion for summary adjudication against Win Global but has not specified what each party is liable for in damages. (Code Civ. Proc., § 579.) The Court inquires as to whether the recovery against Robert S. Shin would constitute double recovery for Plaintiff.

Thus, Plaintiff's request for default judgment against Robert Shin is denied.

Conclusion

Plaintiff Wells Fargo Bank National Association's motion for summary adjudication is granted as to the first and second causes of action.

Plaintiff Wells Fargo Bank National Association's motion for summary adjudication is denied as to attorney's fees.

Plaintiff Wells Fargo Bank National Association's request for default judgment against Defendant Robert S. Shin is denied.